

The Assam Enhanced Police Disciplinary Powers Act, 1950

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State of Assam - Act

The Assam Enhanced Police Disciplinary Powers Act, 1950

ASSAM

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The Assam Enhanced Police Disciplinary Powers Act, 1950

Act 18 of 1950

Published on 26 April 1950

Commenced on 26 April 1950

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The Assam Enhanced Police Disciplinary Powers Act, 1950

Assam Act

18 of 1950

Last Updated 12th February, 2020

Published in the Assam Gazette, dated the 26th April, 1950.

An Act to provide for the regulation and maintenance of discipline in the Assam Police Forces and the Assam Police Battalion.

Preamble. - Whereas it is expedient to provide for the regulation and maintenance of discipline in the Assam Police Forces and the Assam Police Battalion;

It is hereby enacted as follows :

1.

Short title, extent and commencement.

(1)

This Act may be called the Assam Enhanced Police Disciplinary Powers Act, 1950.

(2)

It extends to the whole of Assam and applies to all members of Assam Police Forces and Assam Police Battalion wherever they may be serving.

(3)

It shall come into force at once.

2.

General superintendence and control of the Assam Police Battalion.

- The general superintendence and control of the Assam Police Battalion shall be exercised by such persons or authority as the State Government may appoint in this behalf, designated as the "Commandant of Assam Police Battalion" and in the exercise of such superintendence and the control of the person or authority so appointed shall be governed by the Police Act, 1861 (Act 5 of 1861).

3.

Powers of punishment.

(1)

Notwithstanding anything contained in Section 7(b) of the Police Act, 1861 (Act 5 of 1861) any Police Officer below the rank of sub-inspector of Police or any member of the Assam Police Battalion below the rank of sub-inspector of Police who shall discharge his duty in a careless or negligent manner or who by any act of his own shall render himself unfit for the discharge thereof, may be awarded with the following punishment by the different authorities subject to the maximum period noted against each :

Authority

Punishment

Maximums Period

(a)(i)

The Special Superintendent of Police, Criminal Investigation Department or the Deputy Inspector General in relation to Criminal Investigation Department.

(ii)

The Superintendent of Railway Police in regard to the Railway Police and Railway Protection Police.

(iii)

The Superintendent of Police in regard to the District Police Force.

(iv)

The Principal of the Police Training College in regard to Personnel under training in the College, and Confinement in the quarter-guard

28 days

(v)

The command of the Assam Police Battalion in regard to Personnel of the Assam Police Battalion and trainees of other units under his command for the time being,

(vi)

Any other officer of the rank of Superintendent of Police in respect of Police personnel under his command.

(b)(i)

Assistant Superintendent of Police and Deputy Superintendent of Police (i) in regard to District Police Force; and (ii) Assistant Commandant of the Assam Police Battalion in

regard to personnel of the Assam Police Battalion.

Confinement in the Guard room or lines, punishment drill,
extra guard, fatigue or other duty

7 days.

(ii)

Inspector or subinspector of Police-in-charge of
Circles or Thanas or incharge of independent detachments of the
Assam Police Battalion in regard to the District Police Force
employed in the Circle or Thana or personnel of the Assam Police
Battalion under his command

Confinement in the Guard room or lines, punishment drill,
extra guard, fatigue or other duty

5 days

(2)

In addition to the above, the Commandant of the Assam Police Battalion shall have power to award all other
punishments admissible under Section 7 of the Police Act (Act 5 of 1861).

4.

Effect.

- This Act is in addition to and not derogatory to Police Act, 1861 (Act 5 of 1861).

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